STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF WAYNE

Bernard J. Youngblood
Wayne County Register of Deeds
May 10, 2013 10:48 AM
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Liber:50773 Page:969



WELLS FARGO BANK, N.A., AS TRUSTEE FOR THE CERTIFICATEHOLDERS OF THE MLMI TRUST, MORTGAGE LOAN ASSET-BACKED CERTIFICATES, SERIES 2005-FM1, BY ITS SERVICER BANK OF AMERICA, N.A.,

Plaintiff,

vs.

JENEEN COATS F/K/A JENEEN STEVENS; GLENN A. STEVENS; and UNITED STATES OF AMERICA,

Defendants.
_____/

Case No. 13-001212-CH
Hon. John A. Murphy

FILED IN MY OFFICE
WAYNE COUNTY CLERK
3/27/2013 2:23:33 PM
CATHY M. GARRETT
/s/ Katrina Ross

2013 MAY 10 AM 10:49

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_____/

STIPULATED ORDER FOR CONDITIONAL DISMISSAL OF DEFENDANT UNITED STATES OF AMERICA (ONLY)

At a session of the Court held in the Courthouse, City of Detroit, County of Wayne, Michigan on this 3/27/2013

PRESENT: John A. Murphy
Circuit Court Judge

Plaintiff Wells Fargo Bank, N.A., and Defendant United States of America, stipulate through counsel as follows:

1. Defendant United States acknowledges that the Notice of Federal Tax Lien ("NFTL") against Glenn Stevens that Plaintiff seeks to affect in this litigation, a facsimile copy of which is attached hereto as Exhibit A, recorded on October 22, 2007, in Liber 46752, Page 1495, Wayne County Register of Deeds, is junior and subordinate to Plaintiff's mortgage sought to be foreclosed in this litigation with respect to the subject real property located in the City of Detroit, Wayne County, Michigan, as is more particularly described as follows:

> Lot 408 Frischkorn's West Chicago Boulevard Subdivision, as recorded in Liber 46, Page 11 and 12 of Plats, Wayne County Records
>
> Ward 22 Item 045915
>
> More commonly known as: 8854 Sussex St

2. In the event this action results in a foreclosure and sale of the real property, any surplus proceeds derived from such sale in excess of the amount necessary to satisfy Plaintiff's claims shall be promptly paid into the Court, with the United States being entitled to apply for payment of such surplus proceeds. Plaintiff's counsel shall give written notice of any surplus to undersigned counsel for the United States within 10 days after receipt of sale proceeds.

3. In any foreclosure and sale Plaintiff may obtain in this litigation, Plaintiff acknowledges, in compliance with 28 U.S.C. § 2410, which provides the waiver of sovereign immunity to affect a lien of the United States, the redemption rights of the United States as specified in 28 U.S.C. § 2410(c) and for the amount set forth in 28 U.S.C. § 2410(d).

4. Further, in any foreclosure and sale that Plaintiff may obtain in this litigation, Plaintiff acknowledges, in compliance with 28 U.S.C. § 2410, that, with respect to the United

States, the only lien to be divested from the subject real property in this litigation is the one specified in Paragraph 1, above, with respect to which the United States, and all other persons now or hereafter claiming by or under it, shall be barred and foreclosed from all equity of redemption and claim in and to said premises derived from the sale of the real property after expiration of the redemption period provided in 28 U.S.C. §2410(c).

5. Plaintiff's counsel shall, promptly after entry, send to the undersigned counsel for the United States a true copy of the judgment, decree, or order of foreclosure and sale (or other final order), any notice of sale, any report of sale, any order confirming sale (or other similar papers however denominated).

6. Defendant United States is dismissed as a defendant to this litigation without prejudice, conditioned on the terms outlined in this stipulated order, each side to bear its own costs, expenses, and attorneys' fees.

This is not a final order and does not resolve the last issue in this case.

SO ORDERED.

3/27/2013
Date

/s/ John A. Murphy
Circuit Court Judge

Stipulated:

TROTT & TROTT, P.C.

By: James P. Tomasik (P73323)
Trott & Trott, P.C.
Attorney for Plaintiff

BARBARA L. McQUADE
United States Attorney

Julia A. Caroff w/ consent
By: Julia A. Caroff, Pa. Lic. No. 37949
Assistant United States Attorney
Attorneys for Def United States of America

No. A 08203

E-314 BK.

STATE OF MICHIGAN } ss.
County of Wayne }

CERTIFIED COPY —"LAW"

I, CATHY M. GARRETT, Clerk of Wayne County, and Clerk of the Circuit Court for the County of Wayne, do hereby certify, that the above and the foregoing is a true and correct copy of 13-001212-CH Stipulated Order for Conditional Dismissal of Defendant United States of America (only)

entered in the above entitled cause by said Court, as appears of record in my office. That I have compared the same with the original, and it is a true transcript therefrom, and of the whole thereof.

In Testimony Whereof, I have hereunto set my hand and affixed the seal of said Court and County, at Detroit, this day of MAY 09 2013 A.D. 20 ____

CATHY M. GARRETT, Clerk

Fee, $ 13.00 Liana Taylor, Deputy Clerk